# VESTAR CAPITAL PARTNERS

DANIEL S. O'CONNELL
Chief Executive Officer

***STRICTLY CONFIDENTIAL***

Tamar Marash
41 Middleway
London NW11 6SH
United Kingdom

December 6, 2019

Dear Sirs

**Elective Professional Client Confirmation**

Thank you for your interest in Vestar Capital Partners VII-A, L.P. (the "Fund"). Vestar Management Corporation II is the investment fund manager of the Fund, an alternative investment fund established as an exempted limited partnership formed and registered under the laws of the Cayman Islands. In this letter, "we" and "us" refer to Vestar Capital Partners LLC and its affiliates.

In order to establish whether we may make interests in private equity funds and other similar closed-ended illiquid alternative investment vehicles available to you without offering to you a Key Information Document ("KID") under Regulation (EU) No 1286/2014 on Packaged Retail and Insurance-based Investment Products (the "PRIIPs Regulation"), we have recently completed an assessment of your expertise, experience and knowledge in relation to such investments in order to determine whether you are eligible to be categorised as a "professional client" under Directive 2014/65/EU on Markets in Financial Instruments ("MiFID II") (and, accordingly, classified as an investor that is not a "retail investor" for the purposes of the PRIIPs Regulation).

Following this assessment, we are satisfied that you are capable of making your own investment decisions and understanding the risks involved. Consequently, if requested by you, and subject to the below considerations, we will categorise you as an elective professional client in relation to our marketing and promotion of the Funds.

If you request categorisation as an elective professional client, **you may lose certain important regulatory protections that would otherwise be available to you**. These are detailed in the Appendix to this letter, which you are asked to read carefully. You will not be treated as a "retail investor" for the purposes of the PRIIPs Regulation and, accordingly, you will lose the right to receive a KID in relation to any fund / investment vehicle that we may market to you from time to time.

You are under no obligation to request categorisation as an elective professional client. However, if you choose to remain categorised as a retail client, we will not be able to provide you with any information in relation to the Fund, and you will not receive any similar information from us in the future on other funds under our management.

If you wish to be treated as an elective professional client, please arrange for the enclosed Elective Professional Client Confirmation and Investor Questionnaire to be completed, signed and returned to us. Subject to the satisfactory completion and signing of these documents, we will categorise you as a professional client from the date on which we receive the signed confirmation.

Please note that, although we have agreed to classify you as a professional client for the purposes of investments in private equity funds and other alternative investment vehicles, we will not act for you or otherwise treat you as a client. In particular, we will not advise you on any investments that you may make, or may consider making, in any fund or investment vehicle. If you are in any doubt in relation to any investment decision, you should take independent advice from an appropriately qualified and authorised firm.

If you have any questions in relation to the contents of this letter, please contact Michelle Bergman (mbergman@VestarCapital.com).

Yours sincerely

Vestar Management Corporation II

Name: Daniel S. O'Connell
Title: President

**Appendix**

## LOSS OF PROTECTIONS WARNING

**A person who is categorised as an elective professional client may lose certain regulatory protections.**

**PRIIPs Regulation**

**You will not be treated as a "retail investor" for the purposes of the Regulation (EU) No 1286/2014 on Packaged Retail and Insurance-based Investment Products and, accordingly, you will lose the right to receive a Key Information Document in relation to any fund / investment vehicle that we may market to you from time to time.**

**Financial Promotions**

To the extent that they would have otherwise been applicable, once you are classified as an elective professional client, the following rules will not apply to financial promotions made to you:

- the rules in COBS 4.5 relating to the provision of information about potential investments or investment business, including provisions regarding indications of risk, comparative information, references to tax and the consistency of financial promotions;
- the rules in COBS 4.6 relating to past, simulated past and future performance information;
- the rules in COBS 4.7 relating to direct offer financial promotions;
- the rules in COBS 4.8 relating to cold-calling and other non-written communications; and
- the rules in COBS 4.9 relating to the communication or approval of financial promotions relating to the business of overseas persons.

In addition, financial promotions sent to elective professional clients may assume a significantly higher degree of background knowledge and understanding of investments and investment risk than financial promotions sent to retail clients.

**Financial Ombudsman Service**

Please also note that an elective professional client is not typically eligible to complain to the Financial Ombudsman Service.